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Case Number: 25NWCV00344 Hearing Date: July 28, 2026 Dept: P

KUTKOWSKI v. MORENO, ET AL.

CASE NO.:

25NWCV00344

HEARING: 07/28/2026 @ 9:30 AM

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TENTATIVE ORDER

I.

Defendants' demurrer to the first amended complaint is SUSTAINED with 30 days LEAVE TO AMEND.

II.

Defendants' motion to strike is MOOT.

Moving party to give notice.

Defendants Jason Moreno, Michelle G. Leblanc-Gutierrez aka Michelle Leblanc Trustee of the of the Comstock Ave. Trust, and Michelle Leblanc Trustee of the 20/20 Trust demur to the first amended complaint (FAC) and move to strike portions of the FAC seeking punitive damages.

Background

On January 28, 2025, Plaintiff Gabriel Kutkowski (Plaintiff)

filed this action against Defendants Jason Moreno, Michelle G.

Leblanc-Gutierrez aka Michelle Leblanc, Michelle Leblanc Trustee of the 20/20 Trust, Michelle Leblanc Trustee of the 20/20 Trust aka 20/20 Trust Dated January 23, 2022 (Trust), and Does 1 to 10, inclusive (collectively, Defendants).

On February 27, 2026, following the Court's ruling sustaining Defendants' demurrer to the complaint in part and sustaining with leave to amend in part, Plaintiff filed the operative FAC. The FAC alleges the following: On June 28, 2022, the Los Angeles County Superior Court entered a judgment for Plaintiff and against Moreno for \$250,166.25 and post judgment interest has accrued on this judgment. (FAC, ¶ 8.) In November of 2022, Plaintiff recorded an abstract of judgment in Los Angeles County. (FAC, ¶ 9.) The FAC alleges Moreno has evaded service of a debtor exam and "[w]hile judgment was pending and unsatisfied, [Moreno] and [Leblanc] undertook efforts to hinder and delay the collection of [Plaintiff's] judgment...through the conveyance of several real properties by [Moreno] to his spouse, [Leblanc]." (FAC, ¶¶ 10-11.)

The alleged fraudulent transfers involve the following properties, conveyed from Moreno to Leblanc on October 2, 2024 and currently owned by the Trust: (1) 6717 Comstock Ave, Whittier, CA 90601; APN: 8139-013-002 (6717 Comstock Ave.); (2) 13117 Philadelphia St, Whittier, CA 90601; APN: 8139-016-009 (13117 Philadelphia St.); (3) 10000 Paramount Blvd., Downey, CA 90240; APN: 6361-021-049 (10000 Paramount Blvd.); and (4) 6745 Washington Ave., Whittier, CA 90601; APN: 8139-016-006 (6745 Washington Ave.) (collectively, Subject Properties). (FAC, ¶ 19.)

The FAC asserts a single cause of action for fraudulent transfer.

Legal Standard

Demurrer Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co.

(2004) 116 Cal.App.4th 968, 994.) In assessing a demurrer, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of law." (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.) A complaint will be upheld against a demurrer if it pleads facts sufficient to place the defendant on notice of the issues sufficient to enable the defendant to prepare a defense. (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 549-50.)

"Generally it is an abuse of discretion to sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) A "[p]laintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Ibid.)

Motion to Strike Standard

Motions to strike are used to reach defects or objections to pleadings that are not challengeable by demurrer (i.e., words, phrases, prayer for damages, etc.). (Code Civ. Proc., §§ 435-437.) A motion to strike lies only where the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleadings or by way of judicial notice. (Code Civ. Proc., § 437.)

Punitive damages may be recovered upon a proper showing of malice, fraud, or oppression. (Civ. Code, § 3294, subd. (a).) Conclusory allegations, devoid of any factual assertions, are insufficient to support a conclusion that parties acted with oppression, fraud or malice. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the demurring party meet and confer in person, by telephone, or by video conference at least five days before the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a).) The demurring party shall file and serve a declaration stating either: (a) "The means by which the demurring party met and conferred...and that

the parties did not reach an agreement resolving the objections raised in the demurrer” or (b) “[t]hat the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (a)(3).)

The parties have adequately met and conferred. (Armenta Decl., ¶ 3.)

Request for Judicial Notice

Defendants request the Court take judicial notice of 41 documents including grant deeds, quitclaim deeds, deeds of trust, and interspousal transfer deeds related to the Subject Properties.

Defendants’ request for judicial notice is GRANTED pursuant to Evidence Code section 452, subd. (h). (See *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, n. 1; *Glaski v. Bank of America* (2013) 218 Cal.App.4th 1079, 1090 [“Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, but do not take judicial notice of the truth of the factual matters asserted in those documents.”].)

Discussion

Defendants demur to the FAC on the grounds that it fails to state facts sufficient to constitute a cause of action.

“The UVTA, formerly known as the Uniform Fraudulent Transfer Act [citation], ‘permits defrauded creditors to reach property in the hands of a transferee.’” (*Lo v. Lee* (2018) 24 Cal.App.5th 1065, 1071.) “ ‘A fraudulent conveyance is a transfer by the debtor of property to a third person undertaken with the intent to prevent a creditor from reaching that interest to satisfy its claim.’” [Citation.] The transferee ‘holds only an apparent title [to the transferred property], a mere cloak under which is hidden the hideous skeleton of deceit, the real owner being the scheming and shifty judgment debtor’ [Citation.] The purpose of the voidable transactions statute is “ ‘to prevent debtors from placing property which legitimately should be available for the satisfaction of demands of creditors beyond their reach’ ” (Ibid.)

“Under the UVTA, ‘a transfer of assets made by a debtor is fraudulent as to a creditor, whether the creditor’s claim arose before or after the transfer, if the debtor made the transfer (1) with an actual intent to hinder, delay or defraud any creditor, or (2) without receiving reasonably equivalent value in return, and either (a) was engaged in or about to engage in a business or transaction for which the debtor’s assets were unreasonably small, or (b) intended to, or reasonably believed, or reasonably should have believed, that he or she would incur debts beyond his or her ability to pay as they became due.’” (Ibid., citing Civ. Code § 3439.04.)

“A transfer in fraud of creditors may be attacked only by one who is injured thereby. Mere intent to delay or defraud is not sufficient; injury to the creditor must be shown affirmatively...It cannot be said that a creditor has been injured unless the transfer puts beyond [her] reach property [she] otherwise would be able to subject to the payment of [her] debt.” (Mehrtash v. Mehrtash (2001) 93 Cal.App.4th 75, 80.) Fraud must be pleaded with specificity. (Small v. Fritz Companies, Inc. (2003) 30 Cal.4th 167, 184.)

The FAC alleges that Moreno and Leblanc undertook efforts to hinder and delay the collection of Plaintiff’s judgment through Moreno conveying the Subject Properties to Leblanc. (FAC, ¶ 11.) The FAC alleges “MORENO did not receive reasonably equivalent value in return from LEBLANC for the transfers. MORENO made these transfers knowing he had KUTKOWSKI’S judgment against him and knowingly made the transfers to frustrate KUTKOWSKI’S collection efforts.” (FAC, ¶ 16.) The FAC alleges that Moreno conveyed 6717 Comstock Ave., 13117 Philadelphia St., and 10000 Paramount Blvd. to Leblanc on October 2, 2024 and 6745 Washington Ave. to Leblanc on September 4, 2024, and Leblanc subsequently transferred the Subject Properties to the current owners. (FAC, ¶ 19.)

Defendants demur to the fraudulent transfer cause of action on the grounds that the FAC fails to cure the issues previously demurred to in the complaint. Specifically, Defendants argue that Moreno was never on the titles to the Subject Properties and the FAC fails to plead facts to sustain a claim for punitive or treble damages. Defendants generally cite to the judicially noticed exhibits showing purchases solely by Leblanc of the Subject Properties in support of this argument. Defendants additionally attempt to

explain the reasoning behind certain interspousal transfers. The Court cannot regard these arguments as it involves extrinsic evidence explaining the reasoning behind the judicially noticed exhibits.

In opposition, Plaintiff argues that the FAC alleges each element for a fraudulent transfer claim. Plaintiff also argues that an inference that Moreno had an interest in the Subject Properties is supported by the fact quitclaim deed and interspousal transfer grant deeds were required. Plaintiff also points to an inference that funds used for the purchased may have been community property which renders the interests subject to transmutation.

In reply, Defendants argue that various transfers occurred prior to the judgment. However, not only do Defendants not address which transfers they refer to, Defendants also do not show that the transfer must occur after the judgment. (See Civ. Code, § 3439.04, subd. (b)(10) [consideration to determine actual intent includes “[w]hether the transfer occurred shortly before or shortly after a substantial debt was incurred.”].)

Here, taking the allegations as true as required on demurrer, the FAC generally alleges the elements of a cause of action for fraudulent transfer. However, this is insufficient since pleading fraud requires specificity and allegations are conclusory. (Small, *supra*, 30 Cal.4th at p. 184.) For example, Plaintiff merely alleges that it was “Defendants’ intent to hinder, delay or defraud the collection by KUTKOWSKI against MORENO.” (FAC, ¶ 19.) This is conclusory as it merely restates the language of the UVTA. (See Civ. Code, § 3439.04, subd. (a)(1) [“A transfer...is voidable...if the debtor made the transfer... [w]ith actual intent to hinder, delay, or defraud any creditor.”].) While the timing and circumstances of the transfers may support a finding of a conspiracy of fraud, the allegations in the FAC are insufficient in light of Defendants’ arguments regarding the timing of the transfers and whether or not they predate the debt. (See *Optronic Techs., Inc. v. Celestron Acquisition, LLC* (2025) 108 Cal.App.5th 770, 786.) Since Defendants’ show that some transfers predate the debt, and the FAC specifically alleges the transfers occurred “to avoid the collection of his debt,” the Court cannot determine which transfers are alleged to be fraudulent or whether Plaintiff alleges that the intent to defraud predates the debt.

Moreover, the Court cannot consider Defendants’ arguments regarding the reasoning behind certain transfers as it is improper extrinsic evidence. (See *Hahn, supra*, 147 Cal.App.4th at p. 747.) However,

based on Plaintiff's reliance on new theories arising out of Defendants' extrinsic evidence to support the allegations in the FAC, the Court finds that leave to amend is warranted to allow Plaintiff to include these allegations.

Accordingly, Defendants' demurrer to the FAC is SUSTAINED with 30 days LEAVE TO AMEND.

Motion to Strike

Defendants move to strike portions of the FAC seeking punitive damages and treble damages. Pursuant to the Court's ruling on the demurrer, Defendants' motion to strike is MOOT.